

25STCV26119 25STCV26119

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-03

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Case Number: 25STCV26119 Hearing Date: August 3, 2026 Dept: 512

HEARING DATE: Mon. August 3, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Razo v. FCA US LLC, et al. COMPL. FILED: 09-05-25

CASE NUMBER: 25STCV26119 FAC FILED: 12-30-25

NOTICE: OK

PROCEEDINGS: MOTION TO COMPEL INITIAL DISCLOSURES UNDER CODE OF CIVIL PROCEDURE SECTION 871.26; REQUEST FOR SANCTIONS

MOVING PARTY: Plaintiff Elvia Razo

RESP. PARTY: Defendants FCA US LLC and Auto Company XXIII, Inc.

MOTION TO COMPEL INITIAL DISCLOSURES UNDER CODE OF CIVIL PROCEDURE SECTION 871.26; REQUEST FOR SANCTIONS

(CCP § 871.26)

TENTATIVE RULING:

Plaintiff Elvia Razo's Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure section 871.26 and Request for Monetary Sanctions is DENIED.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on July 24, 2026 ☒ Late ☐ None

REPLY: None filed as of July 29, 2026 ☐ Late ☒ None

ANALYSIS:

I. Background

On September 5, 2025, Plaintiff Elivia Razo ("Plaintiff") filed a Complaint for Violation of Statutory Damages against Defendants FCA US, LLC and Autonation Chrysler Dodge Jeep Ram Valencia ("Defendants") and Does 1-10.

On December 30, 2025, Plaintiff filed a First Amended Complaint ("FAC") for Violation of Statutory Damages against Defendants.

On February 2, 2026, Defendant Auto Company XXIII, Inc. dba Autonation Chrysler Dodge Jeep Ram Valencia filed an Answer to the FAC.

On March 27, 2026, the Court overruled FCA US LLC's Demurrer to the FAC.

On April 24, 2026, FCA US LLC filed an Answer to the FAC.

On June 15, 2026, Plaintiff filed the instant Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure section 871.26 and Request for Monetary Sanctions (the "Motion") against Defendants.

On July 23, 2026, Plaintiff filed Notice of Non-Opposition to the Motion.

On July 24, 2026, Defendants filed an Opposition to the Motion.

No Reply has been filed.

II. Procedural Issues

As an initial matter, the Court finds the Opposition was untimely filed and served less than nine court days prior to the instant hearing.

However, the Court exercises its discretion to address the Opposition on the merits in the interests of justice.

III. Legal Standard and Discussion

Plaintiff moves to compel Defendants' further disclosures under Code of Civil Procedure section 871.26 and requests the Court impose sanctions against Defendants under Code of Civil Procedure section 871.26 as well.

In Opposition, Defendants request the Court deny the Motion as Defendants provided timely initial disclosures under Code of Civil Procedure section 871.26 and, as such, the Motion's requests for further responses and sanctions impermissibly exceed the bounds of Code of Civil Procedure section 871.26. Defendants provide evidence that Defendants timely provided Code of Civil Procedure section 871.26 disclosures to Plaintiff on January 9, 2026. (See Opp., Wang Decl., pp. 1-2, Exh. A.)

Code of Civil Procedure section 871.26 "only applies to a civil action seeking restitution or replacement of a motor vehicle pursuant to [Code of Civil Procedure section 871.20]" and requires that within 60 days after filing a responsive pleading, all parties shall provide to all other parties an initial disclosure and documents pursuant to Code of Civil Procedure section 871.26, subdivisions (f), (g), and (h).

Here, the parties do not dispute that Code of Civil Procedure section 871.26 applies to the instant action.

The Motion is brought as a motion to compel initial disclosures under Code of Civil Procedure section 871.26; however, the Court finds the Motion is, in substance, a motion to compel further responses to Defendants' mandatory disclosures provided to Plaintiff. Indeed, the parties do not dispute that Defendants provided initial disclosures under Code of Civil Procedure section 871.26 to Plaintiff (see Motion; Opp., Wang Decl., pp. 1-2, Exh. A); rather, Plaintiff's Motion centers on the assertion that Defendants' provided disclosures were insufficient for various reasons. (See Motion.)

Code of Civil Procedure section 871.26 does not provide a legal mechanism for compelling further responses to mandatory disclosures provided under Section 871.26, and Plaintiff's Motion is neither brought pursuant to the Discovery Act nor complies with the Discovery Act's requirements for a motion to compel further responses.

Further, the Motion attempts to add-on Discovery Act requirements, such as verifications, into Code of Civil Procedure section 871.26 without any supporting legal authority.

The Court may not grant relief that is not contemplated or permitted by the moving statute and referenced legal authority, and Plaintiff fails to provide any legal authority authorizing or mandating the Court to proceed otherwise.

For these reasons, the Motion is DENIED.

IV. Conclusion & Order

For the foregoing reasons, Plaintiff Elvia Razo's Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure section 871.26 and Request for Monetary Sanctions is DENIED.

Moving party is ordered to give notice.